

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #07	CCRB Case #: 202308956	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Friday, 09/08/2023 10:00 AM	Location of Incident: 33rd Precinct stationhouse	18 Mo. SOL 3/8/2025	Precinct: 33		
Date/Time CV Reported Thu, 09/21/2023 3:37 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/21/2023 3:37 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Scott Isaacs	13210	963579	033 PCT
2. PO Christopher Santiago	14619	974521	033 PCT
3. PO Ronaldo Liautaud	27374	974981	033 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Matthew Kasler	05781	960746	033 DET
2. PO Albert Fernandez	06959	974103	033 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO Scott Isaacs	Force: Police Officer Scott Isaacs used physical force against § 87(2)(b)	A . Substantiated
B . PO Ronaldo Liautaud	Force: Police Officer Ronaldo Liautaud used physical force against § 87(2)(b)	B . Unable to Determine
C . PO Christopher Santiago	Force: Police Officer Christopher Santiago used physical force against § 87(2)(b)	C . Unable to Determine
D . PO Scott Isaacs	Discourtesy: Police Officer Scott Isaacs spoke discourteously to § 87(2)(b)	D . Substantiated
E . PO Scott Isaacs	Off. Language: Police Officer Scott Isaacs made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)	E . Substantiated

Case Summary

On September 21, 2023, § 87(2)(b) called the CCRB to file this complaint.

On September 8, 2023, at approximately 10:00 a.m., § 87(2)(b) was being held as a prisoner in the holding cell area of the 33rd Precinct stationhouse in Manhattan. During this time, PO Scott Isaacs of the 33rd Precinct accused § 87(2)(b) of spitting at him and punched him in the head (**Allegation A -Force: Physical force, Substantiated**). PO Ronaldo Liautaud and PO Christopher Santiago, both of the 33rd Precinct, restrained § 87(2)(b) and, in this process, pushed his body in a manner that caused a sutured wound to open (**Allegation B -Force: Physical force, Unable to Determine**) (**Allegation C -Force: Physical force, Unable to Determine**). Medical attention was summoned for § 87(2)(b) and after Emergency Medical Services (EMS) personnel escorted him into an ambulance, PO Isaacs told § 87(2)(b) that after he punched him in the head, § 87(2)(b) “took it like a bitch” (**Allegation D -Discourtesy: Word, Substantiated**) (**Allegation E -Offensive Language: Gender, Substantiated**). § 87(2)(b) was transported from the stationhouse to § 87(2)(b) hospital.

Body-Worn Camera footage received in this case was recorded by multiple officers at various points prior to, during, and after this incident (Board Review 01), of which portions of footage PO Isaacs recorded was material. The date of this incident was not known until the window of available stationhouse footage had lapsed.

Findings and Recommendations

Allegation (A) Force: Police Officer Scott Isaacs used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Ronaldo Liautaud used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Christopher Santiago used physical force against § 87(2)(b)

Allegation (D) Discourtesy: Police Officer Scott Isaacs spoke discourteously to § 87(2)(b)

Allegation (E) Offensive Language: Police Officer Scott Isaacs made remarks to § 87(2)(b) based upon the gender of § 87(2)(b)

§ 87(2)(b) a 31-year-old male who stands 5’8” tall and weighs 165 pounds, stated to the CCRB (Board Review 02) that shortly prior to this incident, he had been stabbed in his back and received medical treatment in a hospital; while he was in the hospital, officers informed him that he had an open warrant for his arrest and took him into custody. On September 8, 2023, at approximately 10:00 a.m., approximately one hour after officers transported § 87(2)(b) to the 33rd Precinct stationhouse, § 87(2)(b) used the cell area bathroom. After this, while handcuffed and approximately three feet away from and outside his cell, § 87(2)(b) and PO Isaacs engaged in an altercation that involved § 87(2)(b) spitting into the air and PO Isaacs punching him on the right side of his head with a closed fist, making contact with his right eye. § 87(2)(b) did not recall why he spat and did not intend to spit onto PO Isaacs, who accused him of spitting on him.

After PO Isaacs punched § 87(2)(b) PO Liautaud and PO Santiago pulled his arms behind his back to restrain him. PO Liautaud and PO Santiago then pushed § 87(2)(b) into the cell with enough force to cause sutures in a wound on his back to open. § 87(2)(b) screamed, “My back,” and officers did not acknowledge this.

BWC footage received in this case captures interactions between § 87(2)(b) and various officers during the period immediately prior to and during his interaction with EMS personnel

inside the stationhouse and an ambulance. All footage appears to be recorded after the events containing Allegations A, B, and C.

At the 00m15s mark (embedded timestamp of 10:59 a.m.) of the BWC footage PO Isaacs recorded (Board Review 10), Emergency Medical Technicians (EMTs) stand outside § 87(2)(b) cell after § 87(2)(b) requested medical attention, removed his clothing, spat at officers, and urinated in his cell; they enter § 87(2)(b) cell and prepare him for escort out of the stationhouse. At the 06m00s mark, PO Isaacs walks outside with § 87(2)(b) towards an ambulance, into which § 87(2)(b) is lodged. § 87(2)(b) shouts, asking that an officer other than PO Isaacs be near him, as PO Isaacs had punched § 87(2)(b) previously. At the 06m18s mark, PO Isaacs says to § 87(2)(b) “Next time, don’t take it like a bitch when I punch you in the head” and repeatedly acknowledges to § 87(2)(b) that he did punch him and that § 87(2)(b) “took it like a bitch.”

In the Threat, Resistance, or Injury (TRI) Interaction prepared for this incident (Board Review 06), § 87(2)(b) the incident details state that § 87(2)(b) was irate in his cell, hitting walls, yelling, and spitting. The cell was opened to remove a prisoner, and § 87(2)(b) walked towards PO Isaacs in a violent and aggressive manner. PO Isaacs directed § 87(2)(b) into the cell. When § 87(2)(b) spat onto PO Isaacs’ face and attempted to punch him, PO Isaacs used hand strikes against § 87(2)(b) causing no injury, and retreated from and locked the cell.

PO Isaacs, a 30-year-old male who stands 5’10” tall and weighs 195 pounds, stated to the CCRB (Board Review 05) that on the date of this incident, he had worked a tour from 11:15 p.m. the previous night to 7:50 a.m. and, at approximately 10:00 a.m., he was working overtime and processing an arrest, with his BWC docked in a separate room, in the 33rd Precinct stationhouse. PO Isaacs heard commotion in the cell area and ran to it, where he saw that at least one officer was in a verbal altercation with § 87(2)(b) was walking, not in handcuffs, in the interior of a holding cell towards its open door. PO Isaacs entered the cell, and while § 87(2)(b) was inside the cell and approximately two feet away from PO Isaacs, he spat at PO Isaacs, making contact with his face. PO Isaacs did not recall § 87(2)(b) saying anything prior to spitting. PO Isaacs wiped the spit from his face. PO Isaacs told § 87(2)(b) “Don’t spit on me again” and said nothing else. § 87(2)(b) spat onto PO Isaacs’ face a second time. PO Isaacs wiped the spit from his face and verbally warned other officers that § 87(2)(b) was spitting. § 87(2)(b) shouted, “I’ll fuck you all up, everyone in this precinct” at PO Isaacs.

§ 87(2)(b) walked towards PO Isaacs with a “threatening posture” in that he held his arms next to the sides of his body and had his arms and shoulders tensed. Over what felt to PO Isaacs to be approximately ten to twenty seconds, § 87(2)(b) moved an additional foot towards PO Isaacs with tense posture and a threatening demeanor. § 87(2)(b) moved forward towards PO Isaacs in a “controlled lunge” and moved his hands, not in clenched fists, in an “intimidating” way. These motions caused PO Isaacs to believe that § 87(2)(b) would strike him.

Because § 87(2)(b) spat on PO Isaacs, shouted threats, tensed his body, and made lunging motions towards him that suggested he might strike him, PO Isaacs attempted to gain § 87(2)(b) compliance, defend himself, and prevent § 87(2)(b) from escaping the cell by punching § 87(2)(b) two to three times in succession, striking him each time in the face. § 87(2)(b) moved away from PO Isaacs at least two feet and into the holding cell. This was the first time that § 87(2)(b) ceased being aggressive. § 87(2)(b) body posture became more relaxed, and PO Isaacs thought that his punches had succeeded in making § 87(2)(b) compliant in that he no longer posed a threat to him.

PO Isaacs did not recall any other officer assisting him in the process of gaining § 87(2)(b) compliance and did not see any officer push § 87(2)(b) prior to PO Isaacs exiting the cell and locking its door.

PO Isaacs stated that after he exited the stationhouse into a public place with § 87(2)(b) § 87(2)(b) screamed PO Isaacs' name, stating of him, "He beat me up." § 87(2)(b) threatened to spit on PO Isaacs again. PO Isaacs did not want § 87(2)(b) to spit on him again, and because of this, he responded with "unkind words" towards § 87(2)(b) in that he said something to the effect of, "Maybe you shouldn't take it like a bitch when I punch you in the head." PO Isaacs thought that using the phrase "take it like a bitch" had been in his head because § 87(2)(b) had been complaining or "bitching." PO Isaacs considered his statements to be "unkind" because he "should have used better words in that case" and "ran [his] mouth too much."

The 33rd Precinct Prisoner Holding Pen Roster for September 8, 2023 (Board Review 03) suggested that § 87(2)(b) was present in the holding cell area at the time of this incident with one other prisoner, § 87(2)(b) stated to the CCRB (Board Review 04) that while he was inside a cell in the 33rd Precinct stationhouse, the other cell in the area was occupied by a black male, and no other prisoners were in either cell. § 87(2)(b) did not recall anything notable occurring between the male and officers during the period of time he spent lodged in a cell. § 87(2)(b) did not see any officer punch the male and did not hear the male yelling.

PO Liautaud stated to the CCRB (Board Review 07) that while he was in the cell area, § 87(2)(b) was by himself and began "acting erratic" in that he screamed, spat and urinated in the cell and removed his clothing. PO Isaacs and PO Santiago were outside the cell area and entered it, walking to § 87(2)(b) cell. PO Liautaud had not requested any officer assistance. PO Liautaud walked to the cell as well to assist them.

PO Isaacs entered § 87(2)(b) cell, and PO Liautaud entered it behind him. PO Santiago entered behind PO Liautaud. PO Liautaud thought that the intent to enter the cell was to attempt to calm § 87(2)(b) down. § 87(2)(b) spat on PO Isaacs. PO Isaacs raised his hand with an open palm and held it directly in front of § 87(2)(b) face in what PO Liautaud thought was an attempt to block § 87(2)(b) spit from hitting him. PO Isaacs pressed his hand against the side of § 87(2)(b) face one time for approximately three seconds in what PO Liautaud thought was an attempt to stop § 87(2)(b) from spitting.

PO Liautaud did not see PO Isaacs punch § 87(2)(b) or make any arm movements other than those described above. PO Liautaud stood in a position where he would have seen if PO Isaacs had done so, and PO Liautaud did not lose sight of what took place in front of him.

After PO Isaacs made physical contact with § 87(2)(b) face, he and PO Santiago immediately attempted to handcuff § 87(2)(b) PO Liautaud encountered difficulty in handcuffing § 87(2)(b) because he resisted by pulling both of his arms away from PO Liautaud's grip and saying, "Get off me. I don't want you guys touching me." PO Liautaud and PO Santiago maintained their grip on § 87(2)(b) and, after approximately two minutes, successfully moved § 87(2)(b) arms behind his back and handcuffed him. The two officers and § 87(2)(b) were in a stationary position inside the cell, during which time § 87(2)(b) continuously moved his arms. PO Liautaud did not take any actions to gain control of § 87(2)(b) arms other than taking hold of them and moving them. PO Liautaud did not push § 87(2)(b) and did not see any other officer do so.

PO Santiago stated to the CCRB (Board Review 08) that he heard an officer in the cell area say,

“He’s trying to hang himself.” PO Santiago ran to the cell where § 87(2)(b) and officers PO Santiago did not recognize were present. PO Santiago ran to the cell for four to five seconds and saw nothing notable occur between § 87(2)(b) and officers during this time. PO Santiago acknowledged entering § 87(2)(b) cell and stated that after he did so, he removed § 87(2)(b) shirt, pants, and remaining articles of clothing from the floor, threw them outside the cell towards a bench, and exited the cell. PO Santiago spent approximately four to five seconds inside the cell in total. PO Santiago exited the cell, and he did not recall whether other officers in the cell exited behind him or remained inside for any period of time. Officers eventually exited the cell, closed its door, and locked it. During the time PO Santiago saw officers inside the cell with § 87(2)(b) PO Santiago did not see any officer make physical contact with § 87(2)(b) including any officer punching § 87(2)(b) in the head or face. PO Santiago denied making any physical contact himself with § 87(2)(b) whatsoever during this incident.

The NYPD Patrol Guide, Section 221-01 (Board Review 09) states that officers are to prioritize de-escalation and use the reasonable force necessary to gain control or custody of a subject and that they shall not use force to punish or retaliate. In determining whether the use of force is reasonable, officers should consider the following:

- a. The nature and severity of the crime/circumstances
- b. Actions taken by the subject
- c. Duration of the action
- d. Immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders
- e. Whether the subject is actively resisting custody
- f. Whether the subject is attempting to evade arrest by flight
- g. Number of subjects in comparison to the number of MOS
- h. Size, age, and condition of the subject in comparison to the MOS
- i. Subject’s violent history, if known
- j. Presence of hostile crowd or agitators
- k. Subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

In Deputy Commissioner of Trials Case 2021-23487 (Board Review 11), it was found that an officer referring to an individual as a “fool” and sounding “stupid” was an objectively insulting use of language outside of both local vernacular and the scope of advancing police purpose.

The NYPD Administrative Guide, Section 304-06 (Board Review 15) states that officers are prohibited from using discourteous or disrespectful remarks regarding another person’s gender.

§ 87(2)(g)

PO Isaacs, an officer taller and heavier than § 87(2)(b) entered a cell, with two additional officers, that § 87(2)(b) alone occupied. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

§ 87(2)(g)

It is therefore recommended that **Allegations B** and **C** be closed as **Unable to Determine**.

§ 87(2)(g)

It is therefore recommended that **Allegations D** and **E** be closed as **Substantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Isaacs has been a member of service for six years and has been a subject in one CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of January 16, 2024, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (Board Review 13).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 7

Investigator: 
Signature

SI Chris Anderson
Print Title & Name
Manager Vanessa Rosen

12/13/2024
Date
February 16, 2024

Squad Leader: Vanessa Rosen
Signature

Print Title & Name

Date

Reviewer: Signature

Print Title & Name

Date